



Code: BDDH
Adopted: 7/21/21

Public Comment at Board Meetings

All HCCS Board meetings, with the exception of executive sessions, will be open to the public. The Board invites school community members to attend Board meetings to become acquainted with the program and operation of the HCCS. Members of the public also are encouraged to share their ideas and opinions with the Board when appropriate.

It is the intent of the HCCS Board to ensure communications with individuals with disabilities are as effective as communications with others. Individuals with hearing, vision or speech impairments will be given an equal opportunity to participate in Board meetings. Primary consideration will be given to requests of qualified individuals with disabilities in selecting appropriate auxiliary aids¹ and services.

Auxiliary aids and services for persons with disabilities will be available at no charge to the individual. All auxiliary aids and/or service requests must be made with appropriate advance notice. Should the HCCS Board demonstrate such requests would result in a fundamental alteration in the service, program or activity or an undue financial and administrative burden, an alternative, equally effective means of communication will be used.

Audience

During a session of a HCCS Board meeting open to the public, members of the public may be invited to present comments during the designated portion of the agenda. At the discretion of the Board chair, further public comment may be allowed.

Request for an Item on the Agenda

A member of the public may request the Board chair consider placing an item on the agenda of a regular public charter board meeting. This request should be made in writing (may include email) and presented to the Board chair for consideration at least seven working days prior to the scheduled meeting.

Procedures for Public Comment at Meetings

The HCCS Board will establish procedures for public comment in open meetings. The purpose of these procedures will be to inform the public how to effectively participate in Board meetings for the best interests of the individual, the school and the patrons. The information will be easily accessible and available to all patrons attending a HCCS Board meeting.

1. Discussion or presentation concerning a published agenda item is limited to its designated place on the agenda, unless otherwise authorized by the Board chair.
2. A visitor, when invited, speaking during the meeting may introduce a topic not on the published agenda. The HCCS Board, at its discretion, may require that a proposal, inquiry or request be

¹ “Auxiliary aids” may include, but are not limited to, such services and devices as qualified interpreters, assistive listening systems, note takers, readers, taped texts, Brailled materials and large print.

submitted in writing, and reserves the right to refer the matter to the administrator/principal for action or study.

3. Any person who is invited by the Board chair to speak to the Board during a meeting should state their name and, if speaking for an organization, the name and identity of the organization. A spokesperson should be designated to represent a group with a common purpose.
4. Statements by members of the public should be brief and concise. The Board chair may use discretion to establish a time limit on discussion or oral presentation by visitors.
5. Questions asked by the public, when time provided, may be answered by the Board chair or referred to the administrator/principal for reply. Questions requiring investigation may, at the discretion of the Board chair, be referred to the administrator/principal for a response at a later time.
6. At the discretion of the HCCS Board chair, anyone wishing to speak before the Board, either as an individual or as a member of a group, on any agenda item or other topic, may do so by providing the HCCS Board secretary with a completed registration card or sign-in sheet, prior to the Board meeting in order to allow the chair to provide adequate time for each agenda item.

Petitions

Petitions may be accepted at any HCCS Board meeting. No action will be taken in response to a petition before the next regular meeting. Petitions will be referred to the administrator/principal for consideration and recommendation if necessary.

Comments Regarding Staff Members

Speakers may offer objective criticism of HCCS operations and programs. The Board will not hear comments regarding any individual HCCS staff member. The Board chair will direct the visitor to the procedures in Board policy KL - Public Complaints for Board consideration of a legitimate complaint involving a staff member. A commendation involving a staff member should be sent to the administrator/principal.

END OF POLICY

Legal Reference(s):

[ORS 192.610](#) to -192.690

[ORS 338.115\(2\)](#)

Americans with Disabilities Act of 1990, 42 U.S.C. §§ 12101-12213 (2012); 29 C.F.R. Part 1630 (2017); 28 C.F.R. Part 35 (2017).

Americans with Disabilities Act Amendments Act of 2008.

Baca v. Moreno Valley Unified Sch. Dist., 936 F. Supp. 719 (C.D. Cal. 1996).

Leventhal v. Vista Unified Sch. Dist., 973 F. Supp. 951 (S.D. Cal. 1997).

Cross Reference(s):

BDDC - Board Meeting Agenda